STRUCTURE OF GOVERNMENT & CONSTITUTIONAL DEVELOPMENT, 1757–1858

THE COMPANY-STATE CONSTITUTIONAL PROBLEM → REGULATING ACT 1773: FIRST → WHY THE 1773 DESIGN → AMENDING ACT 1781: TARGETED → PITT'S INDIA ACT 1784 → EXECUTIVE CONSOLIDATION, 1786-1793

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◉ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g1 and all prior artifacts unchanged

00

STAGE 00

THE COMPANY-STATE CONSTITUTIONAL PROBLEM

THE COMPANY-STATE CONSTITUTIONAL PROBLEM · LONDON COMPANY · SHAREHOLDERS, DIRECTORS, TRADE AND PATRONAGE · INDIAN SOVEREIGN · REVENUE, WAR, JUSTICE AND LEGISLATION AFTER DIWANI · PRIVATE PROFIT JOINED TO PUBLIC COERCIVE POWER · PARLIAMENTARY RESPONSE · REGULATE, SUPERVISE, CENTRALISE AND FINALLY TRANSFER RULE.

LONDON COMPANY → shareholders, directors, trade and patronage

INDIAN SOVEREIGN → revenue, war, justice and legislation after Diwani → CONTRADICTION → private profit joined to public coercive power → PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

CORE CLAIM
- LONDON COMPANY → shareholders, directors, trade and patronage
- INDIAN SOVEREIGN → revenue, war, justice and legislation after Diwani

MECHANISM
- CONTRADICTION → private profit joined to public coercive power
- PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

CONSEQUENCE / LIMIT
- MUST REMEMBER: Regulating Act 1773. Pitt's India Act 1784. Charter Acts 1813, 1833 and 1853.
- and Government of India Act 1858 changed different corporate, executive, legislative and patronage arrangements.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

01

STAGE 01

REGULATING ACT 1773: FIRST FRAMEWORK

REGULATING ACT 1773 · FIRST FRAMEWORK · GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR · WARREN HASTINGS FIRST · SUBORDINATED IN WAR AND PEACE, WITH PRACTICAL AMBIGUITIES · SUPREME COURT AT CALCUTTA · BEGINS 1774 UNDER CROWN-APPOINTED JUDGES · DIRECTORS REPORT TO MINISTRY

GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first

BOMBAY / MADRAS → subordinated in war and peace, with practical ambiguities → SUPREME COURT AT CALCUTTA → begins 1774 under Crown-appointed judges → DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

CORE CLAIM
- GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first
- BOMBAY / MADRAS → subordinated in war and peace, with practical ambiguities

MECHANISM
- SUPREME COURT AT CALCUTTA → begins 1774 under Crown-appointed judges
- DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

CONSEQUENCE / LIMIT
- GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first
- BOMBAY / MADRAS → subordinated in war and peace, with practical ambiguities

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

02

STAGE 02

WHY THE 1773 DESIGN MALFUNCTIONED

WHY THE 1773 DESIGN MALFUNCTIONED · COUNCIL ARITHMETIC · FRANCIS-CLAVERING-MONSON MAJORITY CAN OUTVOTE HASTINGS · JURISDICTIONAL OVERLAP · SUPREME COURT CLASHES WITH COMPANY REVENUE AND CIVIL COURTS · NAND KUMAR, PATNA AND COSSIJURAH EXPOSE UNCERTAINTY · CONSTITUTIONAL REPAIR FOLLOWS ADMINISTRATIVE CONFLICT, NOT A SMOOTH MASTER

COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings

JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts → CASES → Nand Kumar, Patna and Cossijurah expose uncertainty → LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

CORE CLAIM
- COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings
- JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

MECHANISM
- CASES → Nand Kumar, Patna and Cossijurah expose uncertainty
- LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

CONSEQUENCE / LIMIT
- COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings
- JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

03

STAGE 03

AMENDING ACT 1781: TARGETED JURISDICTIONAL REPAIR

AMENDING ACT 1781 · TARGETED JURISDICTIONAL REPAIR · OFFICIAL ACTS AND REVENUE MATTERS EXPOSED TO DISPUTED COURT · OFFICIAL PUBLIC ACTS EXEMPTED; REVENUE JURISDICTION EXCLUDED · PERSONAL LAW · HINDU AND MUSLIM LAW TO GUIDE RELEVANT CASES · CORRECTED COURT-EXECUTIVE CONFLICT, NOT THE COUNCIL VOTING PROBLEM.

CORE CLAIM
- BEFORE → official acts and revenue matters exposed to disputed Court reach
- 1781 → official public acts exempted; revenue jurisdiction excluded

MECHANISM
- PERSONAL LAW → Hindu and Muslim law to guide relevant cases
- LIMIT → corrected Court-executive conflict, not the Council voting problem.

CONSEQUENCE / LIMIT
- BEFORE → official acts and revenue matters exposed to disputed Court reach
- 1781 → official public acts exempted; revenue jurisdiction excluded

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → corrected Court-executive conflict, not the Council voting problem.

04

STAGE 04

PITT'S INDIA ACT 1784: DUAL CONTROL IN BRITAIN

PITT'S INDIA ACT 1784 · DUAL CONTROL IN BRITAIN · COURT OF DIRECTORS · COMMERCE, APPOINTMENTS AND ROUTINE COMPANY ADMINISTRATION · BOARD OF CONTROL · CROWN-SUPERVISED POLITICAL, MILITARY AND REVENUE DIRECTION · STRONGER BENGAL CONTROL OVER PRESIDENCIES AND SMALLER EXECUTIVE COUNCIL · SUPERVISION WITHOUT IMMEDIATE CROWN TAKEOVER.

COURT OF DIRECTORS → commerce, appointments and routine Company administration

BOARD OF CONTROL → Crown-supervised political, military and revenue direction → INDIA → stronger Bengal control over presidencies and smaller executive council → VERDICT → supervision without immediate Crown takeover.

CORE CLAIM
- COURT OF DIRECTORS → commerce, appointments and routine Company administration
- BOARD OF CONTROL → Crown-supervised political, military and revenue direction

MECHANISM
- INDIA → stronger Bengal control over presidencies and smaller executive council
- VERDICT → supervision without immediate Crown takeover.

CONSEQUENCE / LIMIT
- COURT OF DIRECTORS → commerce, appointments and routine Company administration
- BOARD OF CONTROL → Crown-supervised political, military and revenue direction

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: INDIA → stronger Bengal control over presidencies and smaller executive council.

05

STAGE 05

EXECUTIVE CONSOLIDATION, 1786-1793

EXECUTIVE CONSOLIDATION, 1786-1793 · CORNWALLIS MAY OVERRIDE COUNCIL IN SPECIAL CASES AND SERVE · OVERRIDE POWER GENERALISED TO FUTURE GOVERNORS-GENERAL AND GOVERNORS · COMPANY MONOPOLY RENEWED FOR TWENTY YEARS · STRONGER PERSONAL EXECUTIVE WITHIN A STILL COMPANY-RUN CONSTITUTION.

1786 → Cornwallis may override council in special cases and serve as commander → 1793 → override power generalised to future governors-general and governors → 1793 → Company monopoly renewed for twenty years → DIRECTION → stronger personal executive within a still Company-run constitution.

CORE CLAIM
- 1786 → Cornwallis may override council in special cases and serve as commander
- 1793 → override power generalised to future governors-general and governors

MECHANISM
- 1793 → Company monopoly renewed for twenty years
- DIRECTION → stronger personal executive within a still Company-run constitution.

CONSEQUENCE / LIMIT
- 1786 → Cornwallis may override council in special cases and serve as commander
- 1793 → override power generalised to future governors-general and governors

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DIRECTION → stronger personal executive within a still Company-run constitution.

06

STAGE 06

CHARTER ACT 1813: PARTIAL COMMERCIAL OPENING

CHARTER ACT 1813 · PARTIAL COMMERCIAL OPENING · COMPANY MONOPOLY OVER INDIAN TRADE · TEA MONOPOLY AND TRADE WITH CHINA · CROWN SOVEREIGNTY CLAIM, MISSIONARY ENTRY AND EDUCATION PROVISION · BRITISH INDUSTRIAL ACCESS EXPANDS WHILE THE COMPANY REMAINS TERRITORIAL

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
ENDED → Company monopoly over Indian trade	ADDED → Crown sovereignty claim, missionary entry and education provision	ENDED → Company monopoly over Indian trade
RETAINED → tea monopoly and trade with China	MEANING → British industrial access expands while the Company remains territorial ruler.	RETAINED → tea monopoly and trade with China

CORE CLAIM
- ENDED → Company monopoly over Indian trade
- RETAINED → tea monopoly and trade with China

MECHANISM
- ADDED → Crown sovereignty claim, missionary entry and education provision
- MEANING → British industrial access expands while the Company remains territorial ruler.

CONSEQUENCE / LIMIT
- ENDED → Company monopoly over Indian trade
- RETAINED → tea monopoly and trade with China

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MEANING → British industrial access expands while the Company remains territorial ruler.

07

STAGE 07

CHARTER ACT 1833: ALL-INDIA CENTRALISATION

CHARTER ACT 1833 · ALL-INDIA CENTRALISATION · GG OF BENGAL · GOVERNOR-GENERAL OF INDIA; WILLIAM BENTINCK FIRST · PRESIDENCY LEGISLATURES · LEGISLATIVE POWER CENTRALISED IN THE GOVERNMENT OF INDIA · LAW MEMBER + LAW COMMISSION · MACAULAY AND CODIFICATION DRIVE

GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first

PRESIDENCY LEGISLATURES → legislative power centralised in the Government of India → LAW MEMBER + LAW COMMISSION → Macaulay and codification drive → COMPANY COMMERCE ENDS → corporation becomes a purely administrative agency.

CORE CLAIM
- GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first
- PRESIDENCY LEGISLATURES → legislative power centralised in the Government of India

MECHANISM
- LAW MEMBER + LAW COMMISSION → Macaulay and codification drive
- COMPANY COMMERCE ENDS → corporation becomes a purely administrative agency.

CONSEQUENCE / LIMIT
- GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first
- PRESIDENCY LEGISLATURES → legislative power centralised in the Government of India

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: COMPANY COMMERCE ENDS → corporation becomes a purely administrative agency.

08

STAGE 08

THE 1833 EQUALITY PROMISE AND PRACTICE GAP

THE 1833 EQUALITY PROMISE AND PRACTICE GAP · STATUTORY LANGUAGE · INDIANS NOT TO BE EXCLUDED FROM COMPANY OFFICE BY · INSTITUTIONAL REALITY · PATRONAGE AND RACIAL BARRIERS REMAIN · EXAM DISTINCTION · 1833 VOICES OPEN ELIGIBILITY; IT DOES NOT CREATE THE · ANALYTICAL USE

CORE CLAIM
- STATUTORY LANGUAGE → Indians not to be excluded from Company office by identity
- INSTITUTIONAL REALITY → patronage and racial barriers remain

MECHANISM
- EXAM DISTINCTION → 1833 voices open eligibility; it does not create the 1853 exam
- ANALYTICAL USE → liberal language coexists with an unrepresentative imperial state.

CONSEQUENCE / LIMIT
- STATUTORY LANGUAGE → Indians not to be excluded from Company office by identity
- INSTITUTIONAL REALITY → patronage and racial barriers remain

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANALYTICAL USE → liberal language coexists with an unrepresentative imperial state.

09

STAGE 09

CHARTER ACT 1853: LEGISLATURE AND RECRUITMENT

CHARTER ACT 1853 · LEGISLATURE AND RECRUITMENT · EXECUTIVE COUNCIL · LEGISLATIVE MEMBERS ADDED FOR A DISTINCT LAW-MAKING FUNCTION · CENTRAL LEGISLATIVE COUNCIL · PROCEDURE RESEMBLES A SMALL OFFICIAL PARLIAMENT · OPEN COMPETITION · CIVIL-SERVICE RECRUITMENT PRINCIPLE IMPLEMENTED THROUGH LATER RULES

EXECUTIVE COUNCIL → legislative members added for a distinct law-making function

CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament → OPEN COMPETITION → civil-service recruitment principle implemented through later rules → LIMIT → London examination and access barriers make formal openness unequal in practice.

CORE CLAIM
- EXECUTIVE COUNCIL → legislative members added for a distinct law-making function
- CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament

MECHANISM
- OPEN COMPETITION → civil-service recruitment principle implemented through later rules
- LIMIT → London examination and access barriers make formal openness unequal in practice.

CONSEQUENCE / LIMIT
- CLOSE DISTINCTION: Distinguish enactment from commencement and policy from implementation; the
- 1833 Act ended Company commerce, while open competitive recruitment developed through later measures.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 1833 Act ended Company commerce, while open competitive recruitment developed through later measures.

10

STAGE 10

GOVERNMENT OF INDIA ACT 1858: TRANSFER, NOT REINVENTION

GOVERNMENT OF INDIA ACT 1858 · TRANSFER, NOT REINVENTION · COMPANY RULE, COURT OF DIRECTORS AND BOARD OF CONTROL · SECRETARY OF STATE FOR INDIA ASSISTED BY AN INDIA · GOVERNOR-GENERAL ALSO BECOMES VICEROY; CANNING FIRST · CENTRAL EXECUTIVE, COUNCILS, CODES AND BUREAUCRACY LARGELY SURVIVE TRANSFER. · EVIDENCE LIMIT · READ STATUTORY TEXT WITH COMPANY PRACTICE AND PARLIAMENTARY INQUIRY

ABOLISHED → Company rule, Court of Directors and Board of Control

CREATED → Secretary of State for India assisted by an India Council → INDIA → Governor-General also becomes Viceroy; Canning first → CONTINUITY → central executive, councils, codes and bureaucracy largely survive transfer.

CORE CLAIM
- ABOLISHED → Company rule, Court of Directors and Board of Control
- CREATED → Secretary of State for India assisted by an India Council

MECHANISM
- INDIA → Governor-General also becomes Viceroy; Canning first
- CONTINUITY → central executive, councils, codes and bureaucracy largely survive transfer.

CONSEQUENCE / LIMIT
- EVIDENCE LIMIT: Read statutory text with Company practice and parliamentary inquiry
- constitutional centralisation did not remove distance, discretion, corruption or racial exclusion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ABOLISHED → Company rule, Court of Directors and Board of Control.

11

STAGE 11

CONSTITUTIONAL LADDER, 1773-1858

CONSTITUTIONAL LADDER, 1773-1858 · 1773 OVERSIGHT · 1781 JURISDICTIONAL REPAIR · 1784 CROWN SUPERVISION · 1813 MONOPOLY BREACH · 1833 CENTRAL GOVERNMENT + CODIFICATION · 1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT · 1858 CROWN RULE

1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION → 1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION → 1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT → 1858 CROWN RULE → sovereign changes; colonial centralisation remains.

CORE CLAIM
- 1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION
- 1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION

MECHANISM
- 1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT
- 1858 CROWN RULE → sovereign changes; colonial centralisation remains.

CONSEQUENCE / LIMIT
- 1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION
- 1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 1858 CROWN RULE → sovereign changes; colonial centralisation remains.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · THE COMPANY'S TERRITORIAL AUTHORITY AFTER 1765 CREATED A CONTRADICTION · A PROFIT-SEEKING COMMERCIAL · CORPORATION WAS COLLECTING REVENUE, MAINTAINING ARMIES AND DISPENSING JUSTICE · THE REGULATING ACT, 1773 WAS PARLIAMENT'S FIRST SERIOUS ATTEMPT · GIVING BENGAL PRIMACY, ESTABLISHING A GOVERNOR-GENERAL-IN-COUNCIL AND CREATING THE · THE ACT'S DEFECTS WERE IMMEDIATE · CONFLICT BETWEEN THE GOVERNOR-GENERAL AND COUNCIL, TENSION BETWEEN THE

OPTIONAL SOURCE DEPTH
- The Company's territorial authority after 1765 created a contradiction: a profit-seeking commercial
- corporation was collecting revenue, maintaining armies and dispensing justice in India.
- The Regulating Act, 1773 was Parliament's first serious attempt to control this contradiction by
- giving Bengal primacy, establishing a Governor-General-in-Council and creating the Supreme Court at Calcutta.

ADVANCED DEBATE
- The Act's defects were immediate: conflict between the Governor-General and Council, tension between the Supreme
- Court and Company courts, and unclear limits of Bombay and Madras in war and diplomacy.
- The Amending Act, 1781 attempted to remove these practical defects by
- clarifying jurisdiction and protecting official actions from excessive judicial interference.

LEGACY / NUANCE
- CAUTION: The constitutional story is therefore not a smooth liberal evolution
- it is a sequence of emergency repairs to keep imperial extraction administratively stable.
- Pitt's India Act, 1784 produced dual government in Britain: the Court of Directors managed Company
- affairs while the Board of Control supervised political matters in the name of the Crown.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels